

ASSIGNMENT AND ASSUMPTION OF GROUND LEASE

THIS ASSIGNMENT AND ASSUMPTION OF GROUND LEASE (this “**Assignment**”), is made and entered into as of October 1, 2025 (the “**Effective Date**”), by and between Alta Sunset, LLC, a Florida limited liability company (“**Assignor**”), whose address is 2950 SW 27 Avenue, Suite 210, Miami, FL 33133, and Alta Sunset II LLC, a Florida limited liability company (“**Assignee**”), whose address is 2950 SW 27 Avenue, Suite 210, Miami, FL 33133.

RECITALS

WHEREAS, Assignor is an indirect owner of Assignee; and

WHEREAS, Assignor has agreed to assign to Assignee, and Assignee has agreed to assume, Assignor’s leasehold interest as tenant (together with all rights and obligations relating thereto) under that certain Ground Lease, dated as of August 31, 2018 (“**Original Ground Lease**”) between Assignor and Sunset-Miami Investments, Inc., a Florida corporation (“**Landlord**”), as amended by that certain Amendment to Ground Lease, dated as of September 8, 2020 (the “**First Amendment**”), as amended by that certain Second Amendment to Ground Lease, dated as of March 14, 2022 (the “**Second Amendment**”), as amended by that certain Third Amendment to Ground Lease, dated as of May, 2023 (the “**Third Amendment**”), and as further amended by that certain Fourth Amendment to Ground Lease, dated as of September 30, 2024 (the “**Fourth Amendment**” and together with the Original Ground Lease, the First Amendment, the Second Amendment, and the Third Amendment, the “**Lease**”), for certain real property located in the City of South Miami, State of Florida, located at 6075 Sunset Drive, South Miami, Florida 33143, as more particularly described in the Lease (the “**Property**”).

NOW, THEREFORE, in consideration of the premises, other good and valuable consideration, and the mutual covenants and agreements hereinafter set forth, the parties hereto hereby agree as follows:

1. Assignment by Assignor. As of the Effective Date, Assignor hereby sells, conveys, transfers, assigns, and delivers to Assignee, its successors and assigns, all of Assignor’s right, title, and interest in, to, and under the Lease (including all of Assignor’s right, title, and interest in and to the leasehold estate in the Property), including all security deposits, Deposit and Escrow Funds (as defined in the Lease), prepaid rents, options, rights, and privileges appurtenant thereto. Assignor will indemnify, defend, and hold harmless Assignee from and against any loss, cost, claim, damage, liability, penalty, or expense (including reasonable attorneys’ fees and costs) of whatever kind or nature to the extent arising out of any claim, liability, or obligation under the Lease to the extent arising from events, acts, omissions, or breaches occurring prior to the Effective Date.

2. Assumption by Assignee. Assignee hereby accepts the foregoing assignment and irrevocably and unconditionally assumes and, effective from and after the Effective Date, agrees to pay, perform, and observe fully and timely all of Assignor’s duties, obligations, liabilities, and covenants under the Lease accruing on and after the Effective Date. Assignee will indemnify, defend, and hold harmless Assignor from and against any loss, cost, claim, damage, liability, penalty, or expense (including reasonable attorneys’ fees and costs) of whatever kind or nature to

the extent arising out of any claim, liability, or obligation under the Lease to the extent arising from events, acts, omissions, or breaches occurring on or after the Effective Date.

3. Landlord Consent. Landlord has consented or will have consented, as a condition to the effectiveness of this Assignment, to the assignment and assumption of the Lease from Assignor to Assignee pursuant to that certain Consent to Assignment of Lease executed by Landlord and dated as of October 1, 2025 (the “**Landlord Consent**”). This Assignment will be of no force or effect unless and until the Landlord Consent is executed and delivered.

4. Governing Law; Venue; Waiver of Jury Trial. This Assignment is governed by, and construed and enforced in accordance with, the laws of the State of Florida, without regard to its conflicts of law rules. Each party consents to exclusive jurisdiction and venue in the state courts located in Miami-Dade County, Florida (and the Southern District of Florida for federal jurisdiction). EACH PARTY WAIVES TRIAL BY JURY TO THE FULLEST EXTENT PERMITTED BY LAW.

5. Binding Effect; No Third-Party Beneficiaries. This Assignment will be binding upon and inure to the benefit of the parties and their respective successors and assigns. Nothing in this Assignment is intended to confer any rights, remedies, or claims upon any Person other than the parties and, with respect to Section 3, the Landlord.

6. Counterparts; Electronic Signatures. This Assignment may be signed in any number of counterparts, each of which will be deemed an original and all of which together will constitute one and the same instrument. Signatures delivered by PDF, electronic signature (including DocuSign or similar), or other electronic means will be deemed original for all purposes.

7. No Modification of Lease; Conflicts. Except as expressly provided herein, nothing in this Assignment amends or modifies the Lease. In the event of a conflict between this Assignment and the Lease concerning the assignment and assumption, this Assignment will control.

[Signature page follows this page]

IN WITNESS WHEREOF, Assignor and Assignee have executed this Assignment as of the date first above written.

ASSIGNOR:

ALTA SUNSET, LLC, a Florida limited liability company

By: ASM Sunset, LLC, a Florida limited liability company, its Manager

By: 
Name: Felipe Raimundo Onetto
Title: Management Committee Member

ASSIGNEE:

ALTA SUNSET II LLC, a Florida limited liability company

By: Alta Sunset II Holdings LLC, a Delaware limited liability company, its sole member

By: Alta Sunset II Holdco, LLC, a Florida limited liability company, its managing member

By: Alta Sunset Investors II LLC, a Florida limited liability company, its sole member

By: APM Sunset II LLC, a Florida limited liability company, its manager

By: 
Name: Felipe Raimundo Onetto
Title: Management Committee Member

By: 
Name: Juan Ignacio Montes Labarca
Title: Management Committee Member